

HOUSE No. 2865**The Commonwealth of Massachusetts**

PRESENTED BY:

Natalie M. Higgins and Angelo J. Puppolo, Jr.*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to teacher's retirement buyback for former parochial school teachers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/15/2025</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>1/15/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/21/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>1/21/2025</i>
<i>Frank A. Moran</i>	<i>17th Essex</i>	<i>1/21/2025</i>
<i>James M. Murphy</i>	<i>4th Norfolk</i>	<i>1/22/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>1/28/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/8/2025</i>
<i>Sally P. Kerans</i>	<i>13th Essex</i>	<i>2/10/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/14/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>2/14/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>2/14/2025</i>
<i>Joshua Tarsky</i>	<i>13th Norfolk</i>	<i>2/14/2025</i>
<i>William C. Galvin</i>	<i>6th Norfolk</i>	<i>2/19/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>2/23/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>2/28/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/10/2025</i>
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>3/20/2025</i>

<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>3/27/2025</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>3/27/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>3/27/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>3/27/2025</i>
<i>Ryan M. Hamilton</i>	<i>15th Essex</i>	<i>3/27/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>4/2/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>4/2/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>4/11/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>4/11/2025</i>
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>4/15/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>4/18/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>5/20/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>5/20/2025</i>
<i>Kevin G. Honan</i>	<i>17th Suffolk</i>	<i>5/20/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>5/20/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>7/14/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>8/1/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>9/15/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>10/1/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>10/22/2025</i>
<i>Michael J. Finn</i>	<i>6th Hampden</i>	<i>10/30/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>10/31/2025</i>
<i>Meghan K. Kilcoyne</i>	<i>12th Worcester</i>	<i>11/5/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>11/7/2025</i>
<i>Lisa Field</i>	<i>3rd Bristol</i>	<i>11/10/2025</i>
<i>Shirley B. Arriaga</i>	<i>8th Hampden</i>	<i>1/21/2026</i>
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>2/3/2026</i>
<i>Brian M. Ashe</i>	<i>2nd Hampden</i>	<i>2/18/2026</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>2/23/2026</i>
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	<i>3/6/2026</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>3/17/2026</i>

HOUSE No. 2865

By Representatives Higgins of Leominster and Puppolo of Springfield, a petition (accompanied by bill, House, No. 2865) of Natalie M. Higgins, Angelo J. Puppolo, Jr., and others relative to teacher's retirement buyback for former parochial school teachers. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to teacher's retirement buyback for former parochial school teachers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3 of chapter 32 of the General Laws as appearing in the 2004
2 Official Edition, is hereby amended by inserting after subdivision (4A) the following six
3 subdivisions: -

4 (4B) Parochial school or public or private academy. A member who taught in a parochial
5 school or in a public or private academy may purchase up to 10 years of service credit for that
6 service under subdivisions (4C) to (4G), inclusive.

7 (4C) The member shall have taught in a school approved by the department of education
8 or the education department of another state while holding an appropriate teaching certificate.

9 (4D) The member shall before any retirement benefit becomes effective for that member,
10 make contributions into the members retirement fund, for the years of private or parochial school
11 teaching on the same basis as the member would have made contributions had the service been
12 as a state employee or teacher in the Commonwealth, including interest at a rate to be set by the

board not to exceed regular interest by more than five percentage points. The member's earnings for the years of private or parochial school teaching must be assumed to have been the same as the average salary for teachers in the Commonwealth as determined by the department of education for each of the years when the private or parochial school teaching took place. Interest shall be computed beginning at the end of the year when those contributions would have been made, if the service had been as a state employee or teacher in the Commonwealth, to the date of payment. Payment must be made by a single direct payment or annual direct payments to the retirement system in accordance with subdivision (4A).

(4E) The member's last ten years of creditable service before the date of retirement must be as a state employee or teacher in the Commonwealth.

(4F) Upon completion payment of the contributions under subdivision (4D) the member shall be granted service credit for the period of time for which the contributions have been made. Upon making partial payment of the contributions under subdivision (4D) the member shall be granted service credit on a pro rata basis in accordance with rules adopted by the board.

(4G) Alternative. In the determination of the retirement benefit under this subdivision, if service credit for private or parochial school teaching is not allowed under (4C) or (4E) additional service credit for private or parochial school teaching is allowed for any member who meets the requirements of subdivisions (4B) and (4F) if the member, before any retirement benefit becomes effective for that member, pays into the member's retirement fund, by a single direct payment or annual direct payments to the retirement system, an amount equal to the contributions he would have otherwise paid into the retirement system for said period together with regular interest thereon.

35 Annual payments shall be made in accordance with subdivision (4A).